

## **GUARDIANSHIP OF EUGENE WALKER III**

**CASE NUMBER: 26PG-0033327**

**Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-**Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person. The Petition was filed by the minor's cousin, Jocylynn Root. Letters of Temporary Guardianship issued on April 9, 2026, and are set to expire today unless further extended.

The father has been personally served. The Court will dispense with notice to the deceased paternal grandfather. There is no proof of service of the Notice of Hearing and Petition for the mother, maternal grandparents, paternal grandmother, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The mother must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Alternatively, the above parties can sign a consent and waiver of notice (GC-211, section 4), in lieu of being served.

The Petition's Indian Child Inquiry Attachment (form ICWA-010(A)) fails to indicate a sufficient inquiry has been made regarding the minor's status as an Indian child. An inquiry must be completed by asking the child, the child's parents, and other required and available persons about the child's Indian status. The form indicates a Children's Services social worker was the only person asked. Petitioner is **ORDERED** to complete and file an amended ICWA-010(A). The Court notes the ICWA-010(A) indicates the minor is or may be an Indian child. Petitioner is also **ORDERED** to complete and file a Notice of Child Custody Proceeding for Indian Child (ICWA-030) no later than June 8, 2026, so that proper notice can be provided.

The Court has reviewed the Court Investigator's report filed on April 24, 2026, which recommends granting the Petition. This matter is continued to **Monday, July 6, 2026, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is **ORDERED** to remain in effect until the continued hearing date. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition, on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified, the Court will require a declaration explaining in detail all efforts of Petitioner to locate and serve them and why they cannot be served, to permit the Court to dispense with notice. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**